

Terms of Service of the ANGEL PROTECT application

These Terms of Service were last modified on June 11, 2026.

PLEASE READ THESE TERMS OF SERVICE CAREFULLY (HEREINAFTER THE “**CONDITIONS**” OR THE “**AGREEMENT**”) TO ENSURE THAT YOU UNDERSTAND EACH PROVISION, AS THESE CONDITIONS CONTAIN IMPORTANT INFORMATION REGARDING YOUR LEGAL RIGHTS, REMEDIES AND OBLIGATIONS, INCLUDING VARIOUS LIMITATIONS AND EXCLUSIONS ON THE DAMAGES YOU MAY CLAIM FROM THE COMPANY AND THE INDEMNIFICATION OBLIGATIONS YOU MAY HAVE TOWARD THE COMPANY.

THESE CONDITIONS CONTAIN A PROVISION REQUIRING MANDATORY ARBITRATION OF CLAIMS WHICH, EXCEPT WHERE PROHIBITED BY APPLICABLE LAW, REQUIRES RESORTING TO ARBITRATION ON AN INDIVIDUAL BASIS TO RESOLVE DISPUTES, RATHER THAN JURY TRIALS OR CLASS ACTIONS.

If you are under eighteen years of age, you must ask your parent or legal guardian to read and accept THESE CONDITIONS. By using the ANGEL PROTECT services, your parent or legal guardian accepts these conditions and is responsible for your use as well as for any problem and claim arising therefrom.

ANGEL PROTECT protects and connects your loved ones, to make your life more serene and less stressful.

These Terms of Service apply to the websites, mobile applications, and other associated services (hereinafter, the “**Services**”) provided by TALITI PROJECT LLC, a company in the State of New Mexico (hereinafter, the “**Company**”), referred to in these Conditions as “**we**”, “**our**” or “**us**”).

These Terms of Service explain the expectations you may have of us as well as those we may have of you in connection with your use of our Services and Products.

By accessing or using the Services (including by downloading any mobile application we may offer from time to time), you indicate that you have read, understood and agreed to be bound by these Conditions. These Conditions apply to all visitors and subscribers who access or use the Services (collectively, the **Members**). Before accessing or using our Services, please make sure you have read the Privacy Policy and understand how we collect, store, use and disclose your personal information as described in this document.

BY ACCESSING OR USING THE SERVICES, YOU ACCEPT THESE CONDITIONS, AS WELL AS ANY SERVICE-SPECIFIC CONDITIONS THAT MAY BE REFERENCED HEREIN.

I. USE OF THE SERVICES

A. Eligibility

Use of the Services is intended for individuals and not for entities or businesses (for example, religious groups, schools, corporations or companies). Accounts and subscriptions to the Company's Services must be held and operated by a person who provides their information, or that of their child, to the Company when registering the account. You may use the Services only if you are able to enter into a binding contract with the Company and only in compliance with this Agreement and all applicable laws, rules and regulations.

It is strictly prohibited for any person under thirteen (13) years of age (fourteen (14) years in Korea) (a "**child**") to create an account without the explicit consent of a parent or legal guardian (or any other age as required by your jurisdiction).

By giving their consent for a child to use the Service, parents and guardians agree: 1. to be fully responsible for and to supervise the child's use of the Services, including ensuring that such use is always in compliance with this Agreement, with all documents referenced in this Agreement and with all applicable laws; 2. to be fully responsible for the child's compliance with this Agreement and their use of the Services; and 3. to be fully responsible for the disclaimers, waivers and limitations of liability set out in this Agreement on your behalf and on behalf of the child, and all references to "you" or "your" in paragraphs 1 through 6 of Article 15 shall be deemed modified so as to include your child or your ward, as the case may be. Any Member we have previously excluded from the Service will not be able to access it.

B. Prohibited uses

You agree not to engage in the following prohibited activities:

- copy, distribute, transmit, disassemble, decompile, publicly display, republish, license, sell or disclose any part of the Services on any medium, including through any automated or non-automated "scraping", or by creating derivative works of the Services;
- determine or attempt to determine the source code, algorithms, methods or techniques embedded in the Services or any derivative work thereof, or integrate the Services or any part thereof into another program or product;
- take any action that imposes or may impose, at our sole discretion, an unreasonable or disproportionate load on our infrastructure, or use any automated system, including without limitation "robots", "crawlers", "website scrapers", etc., in order to access the Services by sending more request messages to the Company's servers than a human can reasonably produce in the same period of time using a conventional online web browser or a mobile application;
- transmit spam, chain letters or other unsolicited emails or in-app messages;
- upload invalid data, viruses, worms or other software agents through the Services;
- collect any personally identifiable information, including account names, from the Services;
- use the Services for commercial purposes;
- impersonate another person or otherwise misrepresent your affiliation with a person or entity, commit fraud, conceal or attempt to conceal your identity;

- interfere, or attempt to interfere, with the proper functioning of the Services or attempt to compromise the integrity or security of the system or to decrypt any transmission to or from the servers running the Services;
- access any content of the Services by any technology or means other than those provided or authorized by the Company;
- circumvent the measures we may use to prevent or restrict access to or use of the Services or their content, including but not limited to attempting to circumvent any age-verification or parental-consent mechanism, or providing false or inaccurate information regarding your age or your country and state of residence (where applicable);
- encourage any behavior that restricts or prevents any person's use or enjoyment of the Services or that, in our view, may harm us or the Members of the Services, expose the Company or our Members to liability, or harm the operations or reputation of the Company; and
- violate, or encourage the violation of, this Agreement or any applicable law or regulation, including without limitation any law relating to human trafficking, harassment, credit card fraud, the export of data or software, patents, trademarks, trade secrets, copyright or other intellectual property rights or legal rights (including the data protection rights of others).

C. Right to access and use the Services

We grant you a non-exclusive, limited, non-transferable and freely revocable right to access and use the Services on a single device that you own or control, solely for personal and non-commercial use, and in the manner permitted by the features of the Services. The Company reserves all rights not expressly granted herein relating to the Services and to the Company Content (as defined below). The Company may terminate this right at any time if you fail, materially or repeatedly, to comply with any of the provisions set out in this Agreement or the guidelines provided by our customer service representatives, for any reason beyond our control, or if we cease to provide the Service.

D. Accounts

In order to use our Services, you must have an account with us. The accounts you may create with Angel Protect may give you access to the features of the Services, which we may modify from time to time at our sole discretion.

When creating your account, you must provide accurate and complete information. You are solely responsible for the activity that occurs on your account and you must keep your account password secure. We recommend that you use complex passwords (passwords consisting of a combination of lowercase and uppercase letters, numbers and symbols) for your account. You must notify us immediately of any security incident or any unauthorized use of your account. Unless directly caused by the Company's negligence or by a breach of this Agreement, the Company will not be liable for any damages or losses caused by unauthorized use of your account.

You can control your Member profile and how you interact with the Services by accessing the "profile" screen in the Application and modifying the settings available to you.

E. Downloading our Application

When you download our Application from the Apple App Store, the Google Play Store or any other application sales or distribution platform (hereinafter referred to as an “**App Store**”), you acknowledge and agree that:

1. these Conditions bind you to us and not to the App Store, and we (and not the App Store) are solely responsible for the Application;
2. the App Store has no obligation whatsoever to provide maintenance and support services in connection with our Application, nor to handle any warranty claim;
3. the App Store is in no way responsible for any claims you may have concerning our Application, including product liability claims, consumer protection claims, intellectual property infringement claims or any other claim relating to the Application’s non-compliance with any applicable law or regulatory requirement; and
4. the App Store is a third-party beneficiary of these Conditions and has the right to enforce these Conditions against you (given that they relate to your license to operate our Application through the App Store). When you use our Application, you must also comply with the App Store’s terms of service. We recommend that you read the terms of use and the privacy policy of the App Store for your complete information.

II. ESSENTIAL WARNING — THE COMPANY IS NOT AN EMERGENCY RESCUE SERVICE

The Company is a complementary personal-safety assistance tool. The Application in no way replaces the official emergency rescue services (112 in Europe, 911 in North America, 190/192/193 in Brazil, or any other local emergency number).

In the event of real or imminent danger, you must **imperatively and as a priority** contact the official emergency services (police, fire brigade, medical services, etc.) by the usual means (direct phone call).

A. Technical architecture of the alert system

The Application implements an SOS alert system relying on two complementary channels:

- **Primary channel:** sending the SOS alert via the data network (mobile Internet, Wi-Fi or cellular 3G/4G/5G) to our servers, which then notify the members of your Group.
- **Backup channel (“backup”):** if the primary channel fails, the Application automatically attempts to send an SMS message containing the SOS alert and the user’s last known position to the previously registered members of the Group.

This dual-channel system aims to **maximize the chances of delivering** the SOS alert, without however being able to guarantee its reception in all circumstances.

B. Inherent limitations of the service

You expressly acknowledge and accept that the sending and reception of an SOS alert, as well as of any other notification issued by the Application, depend on external technical factors over which the Company has no control, and in particular:

- The availability, quality and coverage of the mobile Internet or Wi-Fi network;

- The availability, quality and coverage of the cellular network enabling SMS to be sent;
- The operating condition, battery life and battery charge of the smartphone of the user and of the recipients;
- The effective activation of geolocation (GPS), mobile data, Wi-Fi and SMS reception services on the smartphone;
- The proper functioning of telephone operators, Internet service providers and third-party services (Apple, Google, push-notification platforms);
- The absence of any outage or maintenance affecting our servers.

Consequently, and to the fullest extent permitted by applicable law, **the Company may in no case be held liable** for the failure to send, the delay in sending, the failure to receive or the delay in receiving an SOS alert or any other notification issued by the Application, where such failure results in particular from:

- A total or partial lack of mobile, Internet or cellular network coverage;
- A weakness, saturation or degradation of the aforementioned networks;
- A malfunction of any kind whatsoever affecting the smartphone of the sender or of the recipients, the telephone operators, the access providers, the push-notification services, the geolocation services, or any other third-party service essential to the operation of the system.

C. Warranties not offered

The Application furthermore does not guarantee:

- The effective delivery of an SOS alert in all circumstances;
- The absolute accuracy of the geographic positions displayed (dependent on GPS, mobile networks and environmental conditions);
- Any human, medical or police intervention. The Application only notifies the members of the Group, who are free to act or not accordingly.

You expressly acknowledge that the Application constitutes a safety **aid** and not an **emergency service**, and that you use it with full knowledge of the facts.

III. SERVICE AVAILABILITY AND OUR RIGHT TO TERMINATE

We may, without notice, modify the Services, or cease to provide the Services or any feature of said Services, to you or to Members in general, or create usage limits for the Services, in order to improve performance or security, to comply with the law or to prevent illegal activities or abuse of our Services, or if we can no longer provide elements of the Services (for example, if an underlying third-party service provider no longer provides them). You may also end the relationship you have established with us at any time if you do not agree with any of these modifications, by closing your account (see Article XI (Termination of your paid subscription or deletion of your account)).

We may terminate or suspend, permanently or temporarily, your access to the Services without notice and without incurring liability if, in our reasonable opinion, 1. you materially or repeatedly breach any provision of this Agreement, 2. your account has been inactive for twelve (12) months or more, or 3. for any reason beyond our control or if we cease to provide

the Services. In most cases, notice will be given to you before suspending or terminating your access to the Services, unless we reasonably believe that this would result in legal liability for the Company or another person, would compromise an investigation or the operation of any Company service or system, would cause harm to our Members or would constitute a violation of the law or of the directive of a law-enforcement authority.

IV. MEMBER CONTENT AND INTERACTIONS BETWEEN MEMBERS

Certain parts of the Services allow, or may later allow, Members to upload or post content, for example profile information, images, text, comments, questions, messages and other content or information (this content that a Member sends, posts, displays, creates or chooses to make available on the Service is “**Member Content**”). Member Content does not include information collected from or about your phone or device. We claim no ownership rights over the Member Content you have created or submitted. The Member Content you create belongs to you; however, by sharing it through the Services, you accept the license grant for Member Content described below and you agree to allow others to view your Member Content, to modify it or to share it in accordance with your settings and this Agreement. The Company has the right (but not the obligation), at its sole discretion, to remove any Member Content being shared through the Services.

You are solely responsible for your interactions with other Members (“**Interactions between Members**”). We reserve the right to oversee disputes between you and other Members, but we are not obligated to do so. The Company is in no way responsible for your interactions with other Members, or for any action or inaction of a Member.

You agree not to post or transmit Member Content or engage in an Interaction between Members that:

- may create a risk of harm, damage or loss of any kind to any person or property;
- seeks to harm or exploit children by exposing them to inappropriate content, requesting personally identifiable information from them or in any other way;
- may constitute or contribute to a crime or offense, or that contains illegal information or content (including, without limitation, the disclosure of insider information under securities law or of another party’s trade secrets);
- contains information or content that we deem illegal, harmful, abusive, racially or ethnically offensive, defamatory, infringing, invasive of privacy or data protection rights, harassing, humiliating to other persons (publicly or otherwise), slanderous, threatening, profane or otherwise objectionable;
- contains information or content that you do not have the right to make available under any law or contractual or fiduciary relationship;
- contains information or content that, to your knowledge, is not correct and current;
- violates any school or other applicable policy, including those related to cheating or ethics;
- interferes with other Members or users of the Services, in particular by disrupting the normal flow of dialogue in an interactive part of the Services and by deleting or revising any content posted by another person or entity;
- except with express authorization, posts or transmits charitable solicitations, petitions for signatures or other commercial opportunities (including job offers or contractual arrangements), club memberships or chain letters, any advertising or promotional

material or any other solicitation of other Members for the use of goods or services;
or

- runs counter to the intended purpose of the Service(s).
- As part of providing the Services, the Company may use automated abuse-detection mechanisms designed to detect harmful content, including content related to potential violations of these Terms of Service.

You accept, represent and warrant that any Member Content you post or upload does not infringe the rights of any third party of any kind, including Intellectual Property Rights (defined below) or data protection rights, nor will it infringe them in the future. The Company reserves the right, without however being obligated, to investigate and take necessary measures, including the rejection and/or removal of any Member Content or Interaction between Members, to suspend or terminate your account and/or to suspend or terminate any provision of our Services and/or to report you to any law-enforcement authority, if you breach any provision of these Terms of Service. We may, in order to respond to requests from public authorities, subpoenas or court orders, to protect our systems, our service providers, our partners and our other Members, or to ensure the integrity and operation of our business and systems, be required to access and disclose the information or content we deem necessary or appropriate, including information relating to your account (for example, your name and email address), your IP address and your browsing information, your usage history, your Member Content and your conduct.

For the purposes of this Agreement, “**Intellectual Property Rights**” means all patent rights, copyrights, semiconductor topography rights, moral rights, publicity rights, trademarks, trademark and service mark rights, image rights, trade secret rights and other intellectual property rights that may exist as of today or may arise in the future, and all applications and registrations relating thereto, under the law of any state, province, country, territory or other jurisdiction.

With respect to your Member Content, you accept, represent and warrant the following:

- You have the consent of each individual mentioned in the Member Content to use their name or image in the manner contemplated by the Services and by this Agreement, and that individual has released you from any liability that may arise in connection with such use.
- Your Member Content and the Company’s use of it as contemplated by this Agreement and the Service will not violate any law or infringe the rights of third parties, including but not limited to Intellectual Property Rights and privacy rights. Although we reserve the right (but not the obligation) to remove any Member Content that appears on our Services, the Company assumes no responsibility and cannot be held liable for any Member Content that you or any other member or third party posts or sends through the Services, or for Interactions between Members that result from the use of the Services. You will be solely responsible for: 1. your Member Content and the consequences of posting it, and 2. your Interactions between Members and the consequences of any interaction. The Company cannot guarantee that any Member Content or any Interactions between Members comply with the provisions of this Agreement and therefore you understand that you may be exposed to Member Content or Interactions between Members that are inaccurate, objectionable, inappropriate for children, or otherwise unsuited to your purpose, and you agree that the Company cannot be held liable for any harm you claim to suffer as a result of Member Content or Interactions between Members.

Note that it is the responsibility of each holder of intellectual property rights to protect their rights and to initiate any legal or other action they deem appropriate for this purpose. We are not required to take specific measures to enforce or protect a party's intellectual property rights on their behalf.

V. LICENSE GRANT FOR MEMBER CONTENT

By posting any Member Content on the Services, you expressly grant the Company (and you represent and warrant that you have all necessary rights to do so) a license to use, reproduce, modify, publish, list information about, edit, translate, distribute, syndicate, publicly perform, publicly display and create derivative works of all such Member Content and of your name, voice and/or image appearing in your Member Content, in whole or in part, and in any form, media or technology, whether now known or later developed, to be used in connection with the operation, development, marketing, provision and improvement of the Products or Services.

VI. TERMS SPECIFIC TO THE MOBILE SOFTWARE

A. Mobile software

As part of the Products and Services, we make available to you software and/or applications designed for mobile devices (hereinafter the **"Mobile Software"**). To use the Mobile Software, you must have a mobile device compatible with it. The Company does not guarantee that the Mobile Software is compatible with your mobile device. For the Company's Services that you may use, the Company hereby grants you a non-exclusive, non-transferable and revocable right to use one copy of the compiled code of the Mobile Software for an account of which you are the sole owner, for your personal use. Without limiting the general prohibitions relating to your actions mentioned in the "Prohibited uses" article above, which also apply to the Mobile Software, you may not:

- modify, disassemble, decompile or reverse-engineer the Mobile Software, except to the extent that such restriction is expressly prohibited by law;
- rent, lend, resell, sublicense, distribute or otherwise transfer the Mobile Software to any third party, or use it to provide time-sharing services or similar services to third parties;
- make copies of the Mobile Software;
- remove, disable, circumvent, alter or otherwise interfere with the security-related features of the Mobile Software, features that prevent or restrict the use or copying of any content accessible through the Mobile Software, or features that implement limitations on the use of the Mobile Software; or
- remove the copyright notices and other proprietary rights notices on the Mobile Software.

You acknowledge that the Company may from time to time issue updated versions of the Mobile Software, and (if authorized) may update, electronically and automatically, the version of the Mobile Software that you use on your mobile device. You consent to this automatic update on your mobile device and accept that the general conditions of this Agreement apply to all such updates. The right of use above does not constitute a sale of the Mobile Software or of any copy thereof, and the Company or our third-party partners or suppliers retain all rights, title and interest relating thereto (and to any copy thereof). Any attempt on your part to

transfer any of the rights, duties or obligations herein shall be void, except as explicitly provided otherwise in this Agreement. The Company reserves all rights not expressly granted under this Agreement.

The Mobile Software originates from the United States and is subject to the export laws and regulations in force in the United States. The Mobile Software may not be exported, nor re-exported to certain countries or to persons or entities that have been prohibited from receiving exports from the United States. In addition, the Mobile Software may be subject to the import and export laws of other countries. You agree to comply with all laws in force in the United States and abroad relating to the use of the Mobile Software and the Services, including the laws of the country in which you reside.

B. Mobile software from the Apple App Store

The following provisions apply to any Mobile Software that you acquire from the Apple App Store ("**Apple-Downloaded Software**"): you acknowledge and agree that this Agreement is entered into solely between you and the Company, and not with Apple, Inc. ("**Apple**") and that Apple is not responsible for the Apple-Downloaded Software or its content. Your use of the Apple-Downloaded Software must comply with the then-current App Store terms of service. You acknowledge that Apple has no obligation to provide maintenance and support services in connection with the Apple-Downloaded Software. In the event that the Apple-Downloaded Software does not conform to the applicable warranty, you may notify Apple and Apple will refund the purchase price of the Apple-Downloaded Software; to the fullest extent permitted by applicable law, Apple will have no other warranty obligation with respect to the Apple-Downloaded Software, and any other claim, loss, liability, damage, cost or expense attributable to any failure to comply with any warranty will be governed solely by this Agreement and by any law applicable to the Company as the provider of the software.

You acknowledge that Apple is not required to handle your claims or those of third parties concerning the Apple-Downloaded Software or your use of it, including: claims concerning the non-compliance of the Apple-Downloaded Software with applicable legal or regulatory requirements; claims under consumer-protection legislation or similar legislation; all such claims are governed solely by this Agreement and by any law applicable to the Company as the provider of the software. You acknowledge that, in the event of a third-party legal action alleging that the Apple-Downloaded Software or your possession and use of it infringe its intellectual property rights, the Company, and not Apple, will be solely responsible for the investigation, defense, resolution and withdrawal of such intellectual property infringement action to the extent required by this Agreement. You and the Company acknowledge and agree that Apple and its subsidiaries are third-party beneficiaries of this Agreement with respect to your license of the Apple-Downloaded Software, and that, once you have accepted the general conditions of this Agreement, Apple will have the right to enforce this Agreement with respect to your license of the Apple-Downloaded Software against you as a third-party beneficiary thereof (and Apple will be deemed to have accepted this right).

C. Mobile software from the Google Play Store

The following provisions apply to any Mobile Software that you acquire from the Google Play Store ("**Google-Downloaded Software**"): you acknowledge that this Agreement is entered into solely between you and the Company, and not with Google, Inc. ("**Google**"); your use of the Google-Downloaded Software must comply with the then-current Google Play Store terms

of service; Google is solely the provider of the Google Play Store where you obtained the Google-Downloaded Software; the Company, and not Google, is solely responsible for its Google-Downloaded Software; Google has no obligation or liability to you with respect to the Google-Downloaded Software or this Agreement; and you acknowledge and agree that Google is a third-party beneficiary of this Agreement with respect to the Company's Google-Downloaded Software.

VII. OUR COMMUNICATIONS WITH YOU

A. Email communications

By providing the Company with your email address, you consent to our using your email address to send you notices related to the Services, including all notices required by law, in place of sending them by mail. We may also use your email address to send you other messages, for example to inform you of changes to the features of the Services and of special offers.

B. SMS

We may offer you the possibility of receiving recurring SMS, which may include SMS about the services of the Company or of our commercial partners, including offers and features that may interest you, SMS from the members of your family or group of friends whom you invite into a group or circle of the Company (your "**Group**"), or alerts related to a monitoring feature of the Service (each being an "**SMS Program**"). We may also send SMS in case of emergency. By consenting to an SMS Program, you agree to receive SMS at the mobile phone number you have provided to us. You certify that the mobile phone number you have provided is accurate and that you have authorization to provide it to receive such SMS. You acknowledge and agree that the sending of SMS may go through an automatic dialing system, that standard message and data rates apply, and that the frequency of messages may vary.

The SMS Program may not be available with all operators or compatible with all mobile phone models, and operators are not responsible for delayed or undelivered messages. In addition, the availability of the SMS Program may be affected or restricted by the local laws, regulations or rules of your place of residence. We are not responsible for delays in sending or receiving text messages and may modify the SMS Program at any time.

Please bear in mind that if you choose to no longer receive SMS alerts related to a feature of the Service, we may not be able to contact you to relay important messages concerning that Service or the members of your Group. However, in case of emergency or an account concern, we will attempt to contact you by other means, such as by Push notification or email.

C. Push messages

As part of the Services we provide, you will receive Push notifications ("**Push Messages**").

VIII. OUR EXCLUSIVE RIGHTS

Except with respect to your Member Content, the Services as well as all documents, services and information therein or transferred thereby, including information, software, images, text, graphics, illustrations, logos, patents, trademarks, service marks, copyrights, photographs, audio, video, music, content, reports, features, designs, presentations, analyses and data that

are otherwise generated, collected or transmitted through the Services or the Mobile Software, and the look and feel of the Services (the “**Company Content**”), and all Intellectual Property Rights relating thereto, belong exclusively to the Company and to our licensors (including other Members who post Member Content on the Services). Except as explicitly provided herein, no provision of this Agreement shall be deemed to create a license under the Intellectual Property Rights: you agree not to sell, license, rent, modify, distribute, copy, reproduce, transmit, publicly display, publicly perform, publish, adapt, edit or create derivative works of any Company Content. It is strictly prohibited to use the Company Content for any purpose not expressly authorized by this Agreement.

You may choose to, or we may invite you to, send comments or ideas about the Service, in particular about how to improve the Service or our products (“**Ideas**”). By sending an Idea, you agree that your proposal is free of charge, unsolicited and without restriction, that it imposes no obligation on the Company, and that we are free to use the Idea for any purpose without any compensation to you, or to disclose the Idea on a non-confidential basis or otherwise and to anyone. You further acknowledge that, by accepting your proposal, the Company does not waive any right to use similar or related ideas that it previously knew of or that were created by our employees or obtained from a source other than you. The Company has no obligation to study, consider or implement an Idea. You accept, represent and warrant that any Idea you send does not infringe the rights of any third party of any kind, including Intellectual Property Rights or data protection rights, nor will it infringe them in the future.

IX. FEATURES OF THE PRODUCTS AND SERVICES

The Services include a number of features that may or may not be available depending on where you are located, the Services, devices or features you choose and, where applicable, that you pay for or subscribe to. Certain features of the Service require the installation of Mobile Software on the devices to which those features apply. It is possible that not all features of the Service are available in your country.

The main features offered by the Company are as follows:

- **Real-time geolocation:** viewing the position of the members of the same group, subject to their consent.
- **Sending SOS alerts:** triggering an emergency alert to the members of the group, transmitted via the cellular data network (4G/5G) or via Wi-Fi.
- **SMS backup alert:** in the event that the cellular data network or Wi-Fi is unavailable, the backup alert is sent via the traditional mobile network in the form of an SMS message.
- **Creation of groups:** the possibility for users to create groups and to invite their loved ones to them.
- **Safe zones:** creation of personalized geographic zones, with automatic notifications when a member enters or leaves those zones.
- **GPS route to an SOS alert:** when an SOS is triggered, calculation and display of the shortest route to reach the user who triggered the alert. This feature returns the route to a third-party navigation application (such as Google Maps or Apple Maps), which must be installed and activated on the user’s phone.

X. BILLING, PRICING TERMS AND PAYMENT METHODS

This article contains additional policies and information about the Company's billing policies, as well as about pricing terms and payment methods.

A. Billing policies

If you choose to use subscription Features, you accept the pricing terms and payment methods displayed at the time you choose to subscribe. The Company may add new features for additional fees, or modify the rates of existing services, at any time and at its sole discretion. Any modification of our pricing terms or payment methods will apply only to you and will take effect at the billing cycle, following a notice of at least 30 days.

The Company disclaims all liability for the use of mobile data resulting from the use of the Services. Consult your provider for any question relating to billing, as fees and limits may apply to data usage.

B. Pricing terms and payment methods

1. Subscription fees; automatic renewal

All subscription fees, plus applicable taxes and other charges (the "**Subscription Fees**") are payable in advance, at the beginning of your subscription period, and at the beginning of each subsequent billing period, at the then-current Subscription Fee rate.

You have the possibility of paying your Subscription Fees monthly (a "**Monthly Subscription**"), or annually (an "**Annual Subscription**").

Your subscription with us will be automatically renewed until you cancel it. If you have a Monthly Subscription, we (or our third-party payment provider) will automatically charge you each month on the anniversary date of the start of your Monthly Subscription, using the payment information you have provided to us, until you cancel your Monthly Subscription. If you have an Annual Subscription, we (or our third-party payment provider) will automatically charge you each year on the anniversary date of the start of your Annual Subscription, using the payment information you have provided to us, until you cancel your Annual Subscription. We reserve the right to modify our Subscription Fees for Monthly Subscriptions and Annual Subscriptions. We will inform you in advance of any increase in the Subscription Fees applicable to your subscription.

If you modify your subscription or upgrade to a higher subscription, your billing date may also change. If you switch from a Monthly Subscription to an Annual Subscription, on the next billing date, the Subscription Fees at the then-current rate for an Annual Subscription will be charged and your Annual Subscription will be renewed each year. If the option to switch from an Annual Subscription to a Monthly Subscription is available and you choose that option, on the next renewal date of your Annual Subscription, the Subscription Fees at the then-current rate for a Monthly Subscription will be charged and your Monthly Subscription will be renewed each month.

2. Free trial period

Upon registration, and before any subscription to a paid subscription ("**Paid Subscription**"), you may benefit from a free trial period ("**Free Trial Period**"). Certain features may not be available during the Free Trial Period, at the Company's sole discretion. You may cancel your account at any time during the Free Trial Period to avoid additional charges. If you do not cancel your subscription during the Free Trial Period, the price of the type of Paid Subscription you chose upon registration will be automatically charged to you at the end of that Free Trial Period, and you will continue to be charged until you cancel your Paid Subscription. You are limited to one free trial per person.

You may cancel your Paid Subscription as indicated below. Please note that canceling your Paid Subscription does not delete your account. To delete your account, please follow the account deletion instructions described in Article XI(C) below.

- Cancellation of your Company Paid Subscription:
- Cancellation in the Company application. In the Company application, go to Profile > Account > Cancel subscription. If you registered directly through the Apple App Store or the Google Play Store, you must also cancel directly through the Apple App Store or the Google Play Store.

Please note that if you purchased your Company Subscription through the Apple App Store or the Google Play Store, you must also cancel your Company Paid Subscription directly with Apple or Google to ensure that recurring Subscription Fees will no longer be charged to you.

By accepting a Free Trial Period, you agree that the then-current monthly or annual Paid Subscription Fees, as specified in the Free Trial Period offer, will be charged to you at the end of that Free Trial Period and at the beginning of each subsequent billing period. You authorize us to charge you using the Payment Information you provided to us at the time you accepted the Free Trial Period offer. We may verify the validity of your Payment Information and of the payment method you provided to us by requesting a temporary authorization from the financial institution issuing that payment method. If your Payment Information or your payment method is not valid, we may cancel your Paid Subscription and end your Free Trial Period.

Certain features may not be available during the Free Trial Period, at the Company's sole discretion.

3. Payment methods

The Company accepts in-app payments, including those of third parties such as Apple or Google.

4. Price changes

Subscription prices may be changed from time to time to account for inflation or changing business requirements. If this is the case, and you are currently subscribed, the Company will provide you with notice regarding the change in rates by email (or, if you have not provided a valid email address, through the Services or by another available means) before the price change takes effect. If you do not wish to continue the subscription at the new price, you may cancel the subscription concerned before the price increase takes effect by following the instructions in Article XI (Termination of your paid subscription or deletion of your account) below.

C. Refunds

No refunds for Company Services/Subscriptions

You may cancel your account at any time in accordance with Article XI (Termination of your paid subscription or deletion of your account). However, except in the cases described in Article XI(B) (Termination of your subscription during the cooling-off period) below or where prohibited by applicable law, the unused period of a subscription is not refunded, nor are any license or subscription fees for any part of the Service, any content or any data associated with your account, nor anything else. In the event of the cancellation of a feature, your subscription will remain valid and you will retain access to the features until the end of the period for which you paid. For example, if you subscribe to an annual subscription and cancel it two months later, you will not receive a refund for the remaining months of the year, but you will enjoy the features during the ten remaining months for which you have already paid.

D. Payment information; taxes

All the information you provide in connection with a purchase, a Transaction or another interaction related to a monetary transaction with the Service must be accurate, complete and up to date. You agree to pay all charges incurred by the users of your credit card, debit card or any other payment method used in connection with a purchase, a Transaction or another interaction related to a monetary transaction with the Service at the prices in effect when those charges are incurred. You will pay all applicable taxes, where relevant, concerning those purchases, Transactions or other interactions related to a monetary transaction.

XI. TERMINATION OF YOUR PAID SUBSCRIPTION OR DELETION OF YOUR ACCOUNT

A. Termination of your paid subscription

You may cancel your Paid Subscription at any time. Cancellation will take effect on the next renewal date. Please note that canceling your Paid Subscription does not delete your account. To delete your account, please follow the account deletion instructions described in Article XI(C) below. You may cancel your Paid Subscription in the following manner:

- Cancellation of your Company Paid Subscription:
- Cancellation in the Company application. In the Company application, go to Profile > Account > Cancel subscription. If you registered directly through the Apple App Store or the Google Play Store, you must also cancel directly through the Apple App Store or the Google Play Store.
- iPhone users. If you registered with the Apple App Store, on your Apple device, go to “Settings”, tap your name, then tap “Subscriptions”, scroll down to your subscription and then tap “Cancel subscription”.
- Android users. If you registered with the Google Play Store, on your Android device, go to the Play Store application, tap your profile icon at the top right, then tap “Payments and subscriptions”, then tap “Subscriptions”, select your subscription, then tap “Cancel subscription” and follow the instructions.

Please note that if you purchased your Company paid subscription through the Apple App Store or the Google Play Store, you must also cancel your ANGEL PROTECT paid subscription directly with Apple or Google to ensure that your subscription is fully

canceled and that you will no longer be charged for paid subscription or recurring subscription fees.

B. Termination of your subscription during the cooling-off period

If you are a consumer established in the European Union, the European Economic Area or the United Kingdom, you have an automatic right of withdrawal for paid subscription purchase contracts within a period of fourteen (14) days from the date of purchase.

C. Deletion of your account

Deleting your account, deleting the application or leaving a Group will not terminate your Paid Subscription. To cancel your Paid Subscription and stop all recurring charges, you must separately cancel your Paid Subscription as described above. Please make sure you cancel your Paid Subscription **before** deleting your account. You may delete your account at any time as follows:

- Deletion of your Angel Protect account. Deleting your Angel Protect account will permanently delete all history. This action cannot be undone. To delete your account, perform the following steps:
- In the Company application, go to Profile > Delete account > then select “Yes” to confirm that you wish to delete your account.

XII. DATA PROTECTION

We care about the protection of our Members’ data. Please consult our [Privacy Policy](#) to learn how we collect, use and disclose the information concerning you, including device, location and movement data. You consent to the collection and use of your personal information for the purposes described in our Privacy Policy.

XIII. SECURITY

The integrity and security of your personal information are important to the Company. However, we cannot guarantee that unauthorized third parties will never be able to defeat our security measures or use your personal information for improper purposes. You acknowledge that you provide your personal information at your own risk.

XIV. INDEMNIFICATION

This article does not apply to consumers residing in the United Kingdom, the EU, the EEA or any other jurisdiction where this indemnity is not permitted by applicable law. To the extent permitted by applicable law, you agree to defend, indemnify and hold harmless the Company as well as our subsidiaries, agents/representatives, licensors, managers and other affiliated companies, as well as their employees, contractors, agents/representatives, officers and directors, against any claim, damage, obligation, loss, liability, cost or debt and any expense (including without limitation legal fees) arising from: 1. your use of and access to the Service, including any data or content transmitted or received by you; 2. your breach of any condition of this Agreement, including without limitation your breach of any of the representations and warranties herein; 3. your violation of any third-party right, including without limitation any data protection right or Intellectual Property Rights; 4. your violation of any applicable law, rule or regulation; 5. any legal action or damage resulting from your Member Content, or from any

Member Content or other information submitted through your account, including any Idea; or 6. the access to and use of the Service by another party using your unique username and password or any other appropriate security code.

XV. NO WARRANTY

If the legislation of the country where you reside does not permit the exclusion of certain warranties provided for in this article, these exclusions do not apply to you to the extent that they are prohibited.

THE SERVICES ARE PROVIDED "AS IS" AND "AS AVAILABLE". USE OF THE SERVICES IS AT YOUR OWN RISK. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE SERVICES ARE PROVIDED WITHOUT WARRANTY OF ANY KIND, WHETHER EXPRESS OR IMPLIED, INCLUDING THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, DATA PROTECTION, SECURITY, ACCURACY, TIMELINESS, QUALITY OR NON-INFRINGEMENT. NO ADVICE OR INFORMATION, WHETHER ORAL OR WRITTEN, OBTAINED BY YOU FROM THE COMPANY OR THROUGH THE SERVICES WILL CREATE ANY WARRANTY NOT EXPRESSLY STATED IN THIS DOCUMENT. WITHOUT LIMITING THE FOREGOING, THE COMPANY, OUR SUBSIDIARIES, AFFILIATED COMPANIES AND LICENSORS DO NOT WARRANT THAT: (I) THE SERVICES OR THE RESULTS OBTAINED THROUGH THE USE OF THE SERVICES (FOR EXAMPLE, DATA, INFORMATION, LOCATION, ETC.) WILL BE ACCURATE, RELIABLE, ERROR-FREE OR CORRECT; (II) THE SERVICES OR THE RESULTS OBTAINED THROUGH THE USE OF THE SERVICES WILL MEET YOUR REQUIREMENTS; (III) THE SERVICES WILL BE AVAILABLE AT ANY TIME OR IN ANY PLACE, ON TIME, WITHOUT INTERRUPTION OR SECURELY; (IV) ANY DEFECT OR ERROR WILL BE CORRECTED; NOR THAT (V) THE SERVICES ARE FREE OF VIRUSES OR OTHER HARMFUL ELEMENTS. ANY CONTENT DOWNLOADED OR OTHERWISE OBTAINED THROUGH THE USE OF THE SERVICES IS AT YOUR OWN RISK AND YOU WILL BE SOLELY RESPONSIBLE FOR ANY DAMAGE TO YOUR COMPUTER SYSTEM OR MOBILE DEVICE OR FOR ANY LOSS OF DATA RESULTING FROM SUCH DOWNLOAD OR FROM YOUR USE OF THE SERVICES.

THE COMPANY DOES NOT WARRANT, ENDORSE OR ASSUME RESPONSIBILITY FOR ANY PRODUCT OR SERVICE ADVERTISED OR OFFERED BY A THIRD PARTY THROUGH THE SERVICES OR ANY HYPERLINKED WEBSITE OR SERVICE, AND THE COMPANY WILL NOT BE A PARTY TO A TRANSACTION BETWEEN YOU AND THIRD-PARTY PROVIDERS OF PRODUCTS OR SERVICES, NOR WILL IT CONTROL IT IN ANY WAY WHATSOEVER.

XVI. LIMITATION OF LIABILITY

If the legislation of the country where you reside does not permit the exclusion of certain warranties provided for in this article, these exclusions do not apply to you to the extent that they are prohibited.

THIS AGREEMENT GRANTS YOU SPECIFIC LEGAL RIGHTS AND YOU MAY ALSO HAVE OTHER RIGHTS THAT VARY FROM ONE JURISDICTION TO ANOTHER. THE DISCLAIMERS, EXCLUSIONS AND LIMITATIONS OF LIABILITY PROVIDED FOR BY THIS

AGREEMENT WILL NOT APPLY TO THE EXTENT THAT APPLICABLE LAW PROHIBITS IT.

THIS ARTICLE RELATING TO THE LIMITATION OF LIABILITY APPLIES WHETHER THE ALLEGED LIABILITY IS BASED ON CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY OR ANY OTHER BASIS, EVEN IF THE COMPANY HAS BEEN INFORMED OF THE POSSIBILITY OF SUCH DAMAGES. THE LIMITATIONS OF LIABILITY IN THIS ARTICLE APPLY TO THE FULLEST EXTENT PERMITTED BY LAW IN THE APPLICABLE JURISDICTION.

NOTHING IN THIS AGREEMENT AFFECTS YOUR LEGAL RIGHTS AS A CONSUMER.

NOTHING IN THIS AGREEMENT IS INTENDED TO EXCLUDE OR LIMIT THE COMPANY'S LIABILITY FOR: (1) DEATH OR PERSONAL INJURY CAUSED BY THE COMPANY'S GROSS NEGLIGENCE; (2) FRAUD; (3) FRAUDULENT MISREPRESENTATION; OR (4) ANY OTHER LIABILITY THAT CANNOT BE VALIDLY EXCLUDED OR LIMITED BY LAW. TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT WILL THE COMPANY, ITS AFFILIATED COMPANIES, ITS AGENTS/REPRESENTATIVES, ITS DIRECTORS, ITS EMPLOYEES, ITS SUPPLIERS OR ITS LICENSORS BE LIABLE TO YOU FOR ANY LOSS THAT WAS NOT CAUSED BY THE COMPANY'S BREACH OF THIS AGREEMENT OR FOR ANY LOSS OR DAMAGE ARISING FROM THIS AGREEMENT THAT WAS NOT, AT THE TIME THIS AGREEMENT WAS ENTERED INTO, A REASONABLY FORESEEABLE CONSEQUENCE OF THE COMPANY'S BREACH OF THIS AGREEMENT.

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT WILL THE COMPANY, OUR AFFILIATED COMPANIES, AGENTS/REPRESENTATIVES, DIRECTORS, EMPLOYEES, SUPPLIERS OR LICENSORS BE LIABLE TO YOU FOR ANY INDIRECT, PUNITIVE, INCIDENTAL, SPECIAL, CONSEQUENTIAL OR EXEMPLARY DAMAGE OR FOR ANY LOSS OF PROFITS, GOODWILL, USE, DATA OR OTHER INTANGIBLE LOSSES, RESULTING FROM THE USE OF THE SERVICES, OR FROM THE INABILITY TO USE THEM. THE COMPANY WILL IN NO EVENT BE LIABLE FOR ANY DAMAGE, LOSS OR HARM RESULTING FROM THE HACKING OF THE PRODUCTS OR SERVICES, THEIR TAMPERING OR ANY OTHER UNAUTHORIZED ACCESS TO OR USE OF THE SERVICES OR OF YOUR ACCOUNT OR OF THE INFORMATION IT CONTAINS. TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, THE COMPANY ASSUMES NO LIABILITY FOR (I) ERRORS, OMISSIONS, FAULTS OR INACCURACIES OF THE SERVICES, OR OF THE RESULTS OBTAINED THROUGH THE USE OF THE SERVICES (FOR EXAMPLE, DATA, INFORMATION, LOCATION); (II) PERSONAL INJURY, DEATH OR PROPERTY DAMAGE, OF ANY KIND WHATSOEVER, RESULTING FROM YOUR ACCESS TO OR USE OF OUR SERVICES (EXCEPT TO THE EXTENT CAUSED BY OUR GROSS NEGLIGENCE); (III) ANY UNAUTHORIZED ACCESS TO OR USE OF OUR SERVERS OR OF ALL THE PERSONAL INFORMATION STORED THEREIN; (IV) ANY INTERRUPTION OR CESSATION OF TRANSMISSION TO OR FROM THE PRODUCTS OR SERVICES; (V) ANY BUGS, VIRUSES, TROJAN HORSES OR OTHERS THAT MAY BE TRANSMITTED TO OUR SERVICES OR THROUGH THEM BY A THIRD PARTY; (VI) ANY ERROR OR OMISSION IN ANY CONTENT OR ANY LOSS OR DAMAGE RESULTING FROM THE USE OF ANY CONTENT DISPLAYED, EMAILED, TRANSMITTED OR OTHERWISE MADE AVAILABLE THROUGH THE SERVICES; (VII) MEMBER CONTENT,

INTERACTION BETWEEN MEMBERS OR THE DEFAMATORY, OFFENSIVE OR ILLEGAL CONDUCT OF ANY THIRD PARTY; AND/OR (VIII) ANY ACTION OR INACTION OF THIRD PARTIES. IN NO EVENT WILL THE COMPANY, OUR AFFILIATED COMPANIES, AGENTS/REPRESENTATIVES, DIRECTORS, EMPLOYEES, SUPPLIERS OR LICENSORS BE LIABLE TO YOU OR ANY MEMBER FOR ANY CLAIM, PROCEEDING, LIABILITY, OBLIGATION, DAMAGE, LOSS OR COST IN AN AMOUNT EXCEEDING THE AMOUNT YOU PAID TO THE COMPANY HEREUNDER IN THE YEAR PRECEDING THE EVENT GIVING RISE TO THE LIABILITY.

Except where prohibited by applicable law, all legal actions concerning the Services will be time-barred unless the Company receives written notice within one year from the date of the event that gave rise to that legal action.

The Services are controlled and operated from facilities located in the United States. The Company makes no representation that the Services are appropriate or available for use in other locations. Persons who access or use the Services from other countries do so of their own free will and are entirely responsible for compliance with all applicable local laws and regulations. You may not use the Services if you are a resident of a country subject to a United States embargo, or if you are a foreign person or entity that is blocked or prohibited from access by the United States government.

XVII. DISPUTE RESOLUTION

READ THIS ARTICLE CAREFULLY BECAUSE, EXCEPT WHERE PROHIBITED BY APPLICABLE LAW, IT REQUIRES THE PARTIES TO ARBITRATE THEIR DISPUTES. THESE DISPUTE RESOLUTION CONDITIONS, INCLUDING THE ARBITRATION OBLIGATIONS AND THE WAIVER OF CLASS ACTION RIGHTS, APPLY TO ALL CLAIMS EXISTING BETWEEN YOU AND THE COMPANY INCLUDING THOSE THAT AROSE BEFORE OR AFTER ACCEPTING ANY PRIOR VERSION OF THE COMPANY'S CONDITIONS. The provisions set out in this article are prohibited by the Consumer Protection Act (CQLR c P-40.1) of Quebec and therefore do not apply to Members residing in Quebec, Canada.

In the unlikely event that you are not satisfied with the solution provided by the Company via contact@angelprotect-app.com and that you and the Company are unable to settle a claim following the Mandatory Pre-Arbitration Notice and Informal Dispute Resolution Procedures below, we each agree to settle the claim by binding arbitration rather than before courts of general jurisdiction, in accordance with the following terms:

- **Applicable law:** the law of the State of New Mexico (United States) or United States federal law.
- **Jurisdiction and place of arbitration:** New Mexico, United States.
- **Arbitration rules:** National Arbitration and Mediation (NAM), or American Arbitration Association (AAA) as an alternative if NAM is not available.

Arbitration is less formal than a court trial. Arbitration uses a neutral arbitrator instead of a judge or jury, may allow for more limited discovery than in court, and is subject to limited review by the courts. Except as expressly limited in this article, arbitrators may award the same damages and remedies as a court. Any arbitration conducted under this Agreement will be conducted on an individual basis. Class arbitrations and class actions are not permitted.

FOLLOW THE INSTRUCTIONS BELOW IF YOU WISH TO OPT OUT OF THE ARBITRATION OBLIGATION.

A. Arbitration of claims

1. Claims subject to arbitration

To the fullest extent permitted by applicable law, the Company and you agree to submit to arbitration all claims arising between us, with the exception of claims 1. exclusively related to intellectual property rights (such as patent, copyright, trademark, trade secret or moral rights, excluding privacy or publicity rights) on your part or on the part of the Company, including any claim in which you or the Company seek injunctive or other equitable relief for the alleged illegal use or infringement of your or the Company's intellectual property or other violation of your or the Company's intellectual property rights ("**IP Claims**"), or 2. that are properly brought before a small claims court, provided that the small claims court does not permit class actions or similar representative actions or relief. For the avoidance of doubt, claims that are not related to intellectual property or intellectual property rights but that are filed jointly with IP Claims will be settled by a neutral arbitrator through final and binding arbitration instead of in court by a judge or jury.

References to "**the Company**", "**you**", "**we**" and "**our**" in this Arbitration Agreement include our respective predecessors in title, successors and assigns, as well as our respective parent companies, subsidiaries and affiliates; these entities and our respective agents, employees, licensees, licensors and content providers at the time your claim or ours arises; and all authorized or unauthorized users or beneficiaries of the Services under this Agreement or prior Agreements entered into between us.

You agree that by entering into this Agreement and accepting these Conditions, you and we each waive the right to participate in a class action and a jury trial to the fullest extent permitted by applicable law.

This Agreement constitutes a transaction in interstate commerce, and the Federal Arbitration Act governs the interpretation and enforcement of this arbitration provision. This article will survive the termination of this Agreement.

2. Mandatory Pre-Arbitration Notice and Informal Dispute Resolution Procedures

You and we agree that informal, good-faith efforts to settle claims can often result in a prompt, cost-effective and mutually beneficial resolution. Therefore, any party wishing to initiate arbitration, file a claim in small claims court or seek legal relief for IP Claims must first send the other party a written Mandatory Pre-Arbitration Notice. That Notice must be sent to the Company by email at the address privacy@angelprotect-app.com. The Company will send the Mandatory Pre-Arbitration Notice to the email address associated with your account.

A Mandatory Pre-Arbitration Notice must include 1. the name, address and email address of the claimant; 2. a description of the nature and basis of the claim; 3. all relevant facts giving rise to the nature and basis of the claim; 4. a description of the nature and basis of the specific relief sought, including the damages claimed, if any, and a detailed calculation thereof; and 5. a statement personally signed by the claimant (and not solely by their legal counsel) certifying

the accuracy of the contents of the Mandatory Pre-Arbitration Notice. The Mandatory Pre-Arbitration Notice must be individualized, which means that it may concern only the claim of a single party.

After receipt of a complete Mandatory Pre-Arbitration Notice, the parties will engage in a good-faith effort to settle the claim during a period of 60 days (which may be extended by agreement). You and we agree that after receipt of the complete Mandatory Pre-Arbitration Notice, the recipient may, in accordance with the good-faith effort to settle the claim, request an individualized video settlement conference to be held during the 60-day period (but which may be held after the 60-day period if the parties agree) and both parties will attend it personally (with the legal counsel of both parties, if represented, invited to attend the video settlement conference). If a party cannot participate in the video settlement conference, that party may attend by telephone upon showing good cause warranting telephone participation (for example, inability to obtain the equipment or insufficient Wi-Fi due to circumstances of indigence). You and we agree that the parties (and legal counsel, if represented) will collaborate to schedule the conference at the earliest date convenient to them and to reach a resolution. If we and you fail to reach an agreement resolving the points identified in the Notice within 60 days after receipt of the complete Notice (or a longer period if agreed by the parties), you or we may initiate an applicable arbitration proceeding, a small claims court proceeding or a legal action, as permitted by these Conditions.

Compliance with the Mandatory Pre-Arbitration Notice and Informal Dispute Resolution Procedures is a prerequisite to initiating an applicable arbitration, a small claims court proceeding or a legal action. Any applicable limitation period (including the statute of limitations) and any filing deadline will be suspended for the duration of the implementation of the Mandatory Pre-Arbitration Notice and Informal Dispute Resolution Procedures. All the Mandatory Pre-Arbitration Notice and Informal Dispute Resolution Procedures are essential so that you and the Company have a real opportunity to settle claims informally. If any aspect of these requirements has not been met, the filing or continuation of an arbitration may be prohibited. In addition, except where prohibited by law, the arbitration service provider may not accept, administer, enforce or require fees in connection with an arbitration that was initiated without the implementation of the Mandatory Pre-Arbitration Notice and Informal Dispute Resolution Procedures. If the arbitration is already underway, it will be administratively closed. Nothing in this paragraph limits a party's right to seek damages for non-compliance with these Mandatory Pre-Arbitration Notice and Informal Dispute Resolution Procedures.

Notwithstanding any provision to the contrary in this Agreement, each party may seek an injunction or any other equitable relief from a court of competent jurisdiction pending the completion of the Mandatory Pre-Arbitration Notice and Informal Dispute Resolution Procedures if such relief is necessary to prevent irreparable harm. For the avoidance of doubt, the court's authority under this provision is strictly limited to granting temporary relief that may be necessary to support the arbitration, the small claims court action or any other judicial proceeding, and the court will not have the power to rule on the merits of the dispute.

3. Arbitration procedure

For arbitrations in which your domicile is in North America, Central America, South America or the Caribbean, the arbitration will be governed by the applicable rules of the National Arbitration & Mediation ("**NAM**") (including the Comprehensive Dispute Resolution Rules and

Procedures and/or the Supplemental Rules for Mass Arbitration Filings, as the case may be) ("**NAM Rules**"), as modified by this Arbitration Agreement, and will be administered by NAM. The NAM Rules and the forms to initiate an arbitration are available online at www.namadr.com. If NAM is not available or refuses to do so, the arbitration will be governed by the applicable rules of the American Arbitration Association ("**AAA**"). The AAA rules and the forms to initiate an arbitration are available online at www.adr.org.

We agree, you and we, that the party initiating the arbitration must send a certification attesting that it has complied with and completed the requirements of the Mandatory Pre-Arbitration Notice and Informal Dispute Resolution Procedures, and that it is a party to the Arbitration Agreement attached to the arbitration demand. The arbitration demand and the certification must be personally signed by the party initiating the arbitration (and by their legal counsel, if represented).

All matters are within the arbitrator's jurisdiction, except for those related to the validity, applicability or scope of these dispute resolution conditions and of the arbitration clause, for which a court of competent jurisdiction will have exclusive power to rule, including the power to prohibit the filing, continuation or administration of arbitrations and the enforcement of arbitration fees.

Unless otherwise agreed between you and us, or unless otherwise provided by the applicable arbitration rules, any arbitration hearing concerning a claim not exceeding \$15,000 will be held by videoconference, with both parties having the possibility of attending live. All other hearings will take place in the county (or parish) of your residence. You and a representative of the Company must attend any videoconference or any arbitration in person. At the conclusion of the arbitration procedure, the arbitrator will render a reasoned written decision explaining the essential findings and conclusions on which the decision is based. The arbitrator's decision is binding only between you and the Company and will have no prejudicial effect in the context of another arbitration or another proceeding involving another party. A fully executed arbitration award may not be recorded before any court.

As before a court, you and the Company agree that any legal counsel representing a party in an arbitration certifies, upon the initiation and conduct of the arbitration, that they comply with the requirements of Federal Rule of Civil Procedure 11(b), including the certification that the claim or relief sought is neither frivolous nor brought for an improper purpose.

The arbitrator is authorized to impose any sanction provided for by the NAM Rules, Federal Rule of Civil Procedure 11, or applicable federal or state law, against all parties and all duly represented legal counsel.

Except where expressly prohibited otherwise, the arbitrator may grant any remedy, relief or solution that the parties could have obtained before a court, including the award of attorney's fees and costs, in accordance with applicable law. Unless otherwise provided by applicable law, the parties bear the costs and fees of their own attorney for the arbitration, unless the arbitrator imposes sanctions or concludes that the merits of the claim, defense or relief sought are frivolous or presented for improper purposes (according to the criteria set out in Federal Rule of Civil Procedure 11(b)).

4. Arbitration fees

The payment of arbitration fees (fees imposed by the arbitration administrator, including filing, arbitrator and hearing fees) will be governed by the applicable arbitration rules, unless you benefit from a fee waiver under applicable law. You and we agree that the arbitration must be economically worthwhile for all parties and that any party may contact the arbitration service provider to obtain a reduction or deferral of fees.

5. Confidentiality

At the request of either party, and unless prohibited by law, the arbitrator will issue an order requiring that the confidential information of either party disclosed during the arbitration (whether in documents or orally) may only be used or disclosed in connection with the arbitration or a proceeding to enforce the arbitration award, and that any authorized court filing of confidential information must be made under seal to the fullest extent permitted by law.

6. Settlement offer

In any arbitration between you and the Company, the responding party may, but is not required to, make a written settlement offer at any time before the evidentiary hearing or, if a dispositive motion is permitted, before the dispositive motion is granted. If the party bringing the action rejects the written settlement offer within seven days of receiving it and the arbitration award is either (1) in favor of the party bringing the action and equal to or less than the responding party's written settlement offer, or (2) in favor of the responding party, then the party bringing the action must pay the costs incurred by the responding party after the offer was made, including all arbitration fees paid. However, if applicable law prohibits the responding party from recovering its costs from the party bringing the action, then the party bringing the action may only recover the costs to which it is otherwise entitled that were incurred before the date on which the written settlement offer was made, and may not recover any costs incurred after the date on which the written settlement offer was made.

The fact, amount or terms of any settlement offer made under this subsection may not be disclosed to the arbitrator until the arbitrator has rendered their decision on the claim.

7. Individualized relief requirement

The arbitrator may only grant relief in favor of the individual party seeking relief and only to the extent necessary to provide the relief warranted by that party's individual claim.

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, YOU AND WE AGREE THAT EACH PARTY MAY ONLY BRING ACTIONS AGAINST THE OTHER ON AN INDIVIDUAL BASIS, AND NOT AS A PLAINTIFF OR MEMBER OF A CLASS ACTION IN ANY PURPORTED CLASS, GROUP, CONSOLIDATED OR REPRESENTATIVE PROCEEDING.

In addition, unless you and we agree otherwise, the arbitrator may not consolidate the claims of more than one person nor may the arbitrator preside over any form of class, group, consolidated or representative proceeding.

Notwithstanding the foregoing, and only to the extent required by applicable law, if a claim is presented that includes a request for public injunctive relief (that is, injunctive relief that

primarily benefits the general public and not solely the individual party), the parties agree that all matters other than the request for public injunctive relief will first be resolved by arbitration (unless the claim is not subject to arbitration or is properly brought before a small claims court). Following the issuance of a final award on the arbitrable claims, any request for public injunctive relief will be decided by a court of competent jurisdiction, to the extent required by applicable law. The court will be bound by the findings of fact and law rendered by the arbitrator to the fullest extent permitted by law.

Similarly, if, after exhaustion of all remedies, one of the prohibitions concerning 1. non-individualized declaratory or injunctive relief and 2. class, group, consolidated or representative claims proves inapplicable with respect to a particular claim or request for relief, the parties agree that such claim or request for relief will be decided by a court of competent jurisdiction after all other claims and requests for relief have been arbitrated. The court will be bound by the arbitrator's findings of fact and law to the fullest extent permitted by law.

You agree that any arbitration between you and the Company will be subject to this article and not to any prior arbitration agreement you had with the Company, and, notwithstanding any provision to the contrary in this Agreement, you agree that this article modifies any prior arbitration agreement you had with the Company, including with respect to claims that arose before this arbitration agreement or any prior agreement.

8. Mass filings

If, at any time, 25 or more claimants (including you or the Company) submit Mandatory Pre-Arbitration Notices or seek to file arbitration demands raising similar claims against the other party or against parties linked by the same legal counsel or coordinated entities, then you and we agree that the additional procedures set out below will apply.

The parties agree that throughout this process, their legal counsel will meet and confer to discuss modifications to these procedures based on the specific needs of the Mass Filing. The parties acknowledge and agree that by choosing to participate in a Mass Filing, the adjudication of their claim may be delayed but that reasonable efforts will be made to minimize such delays. Any applicable limitation period (including statutes of limitation) and any filing-fee deadline will be suspended from the moment the Mandatory Pre-Arbitration Notice and Informal Dispute Resolution Procedures are initiated, provided that the Mandatory Pre-Arbitration Notice complies with the requirements of this article, until a claim is selected to be processed as part of a bellwether procedure or is settled, withdrawn, otherwise resolved, or excluded from arbitration.

Step one. The parties' legal counsel will each select ten claims per party (20 claims in total) to file and submit to individual arbitrations as part of the bellwether procedure. Each of these individual arbitrations will be assigned to a single and different arbitrator, unless otherwise agreed in writing by the parties. The results and decisions of these step-one arbitrations will have no precedential or binding effect on the remaining claims. The remaining claims will not be filed or deemed filed in arbitration, and no arbitration fees will be charged in relation to said claims, unless and until they are selected to be filed as part of individual arbitration proceedings within a bellwether procedure.

Step two. Once the step-one arbitrations are completed (or earlier if the parties agree in writing), the remaining parties must participate in a single global mediation of all remaining

claims, with the mediator's fees paid by the Company. The parties must agree on a mediator within 30 days following the conclusion of the last step-one arbitration. If the parties cannot agree on a mediator within 30 days, the arbitration service provider will administratively appoint a mediator. All parties will cooperate with the aim of ensuring that the mediation is scheduled as quickly as possible after the mediator's appointment.

Step three. If the step-two mediation does not settle all remaining claims, the arbitration obligation defined in this article will no longer apply to any party that has filed a claim for which a compliant and timely Mandatory Pre-Arbitration Notice was submitted and that has completed the informal dispute resolution procedures. Any party with an unresolved claim must bring it before a court, and not through arbitration. These parties may present their claims before a court either individually or as part of a joint or group action. However, to the fullest extent permitted by applicable law, any joint or group action may only include the claimants included in a mass filing who submitted a compliant and timely Mandatory Pre-Arbitration Notice and who completed the informal dispute resolution procedures.

A court of competent jurisdiction will have the power to enforce these mass-filing provisions and, if necessary, to prohibit the mass filing, continuation or administration of arbitrations and the enforcement of arbitration fees. If these additional procedures apply to your claim, and a court of competent jurisdiction determines that they are not applicable to your claim, then your claim will be brought before a court of competent jurisdiction, in compliance with this Agreement.

You and the Company agree that we each value the integrity and efficiency of arbitration and wish to use this process for a fair resolution of the genuine and sincere claims existing between us. You and the Company acknowledge and agree to act in good faith to ensure that the processes set out herein are respected. The parties further agree that the application of these mass-filing procedures has been reasonably designed to result in an efficient and equitable resolution of these cases.

9. Opt-out

You have the right to opt out of the arbitration obligations defined in this article by sending a written notice of your opt-out to the email address privacy@angelprotect-app.com within 30 days following your prior acceptance of these Conditions. Said notice must include the name of the person deciding to opt out of arbitration, their contact details (including email address, postal address and phone number), and a statement indicating that you wish to opt out of the arbitration obligations and agree instead to settle claims before a court. If you do not send said arbitration opt-out notice in a timely manner, then you agree to be bound by the arbitration obligations defined in this article.

10. Severability of clauses

If any part of this article is found to be unenforceable or illegal for any reason whatsoever, 1. the unenforceable or illegal provision will be severed from these Conditions; 2. the severance of the unenforceable or illegal provision will have no impact on the remainder of this article or on the parties' ability to compel arbitration of any remaining claim on an individual basis in accordance with this article; and 3. to the extent that claims must be presented on a class, group, consolidated or representative basis, said claims must be brought before a competent

civil court and not through arbitration, and the parties agree that the litigation relating to those claims will be stayed pending the outcome of any individual claim in arbitration.

B. Waiver of class actions

You and the Company agree that, to the fullest extent permitted by law, each party may only bring actions (whether before a court or in arbitration) against the other on an individual basis, and may not participate as a plaintiff, claimant or member of a group in a class, consolidated, group, representative or private attorney general proceeding. This means that you and the Company may not bring an action on behalf of a group or class and may not bring an action on behalf of any other person, except as a parent, guardian or ward of a minor, or in another similar capacity for an individual who cannot otherwise bring their own individual action. This also means that you and the Company may not participate in any class, consolidated, group, representative or private attorney general proceeding brought by a third party. Notwithstanding the foregoing, you or the Company may participate in a class settlement. To the fullest extent permitted by law, you and the Company waive any right to a jury trial.

XVIII. INFORMATION AND COMPLAINTS

For any question or complaint concerning the Services, please send an email to the address contact@angelprotect-app.com. Please note that email communications are not necessarily secure; likewise, you should not provide credit card information or other sensitive information in your email exchanges with the Company. California residents may reach the Complaint Assistance Unit of the Division of Consumer Services of the California Department of Consumer Affairs by mail at 1625 North Market Blvd., Sacramento, CA 95834, or by phone at (916) 445-1254 or (800) 952-5210.

XIX. GENERAL

A. Assignment

This Agreement and all rights and licenses granted herein may not be transferred or assigned by you, but they may be assigned by the Company without restriction. Any attempt to transfer or assign in violation of these Conditions will be null and void.

B. Notice procedures and modifications of the Agreement

The Company may send you notices, whether required by law or sent for marketing or other commercial purposes, by email, by written or paper copy or by posting these notices on its website or mobile applications, at the Company's choice, at its sole discretion or as required by applicable law. In order for us to be able to send you notices by email, you must ensure that you have an up-to-date email address in your account. You may update the email address that appears on your account by accessing your Account in the application. The Company reserves the right to choose the way and means by which it sends notices to its Members, subject to the ability to refuse them by certain means, as described in this Agreement. The Company is not responsible for any automatic filter that you or your network provider may apply to the email notifications we send to the email address you provided. The Company may modify or update this Agreement from time to time to reflect changes made to our Services or to our business practices; for legal, regulatory or security reasons, or to prevent abuse or harm. Your continued use of the Services after such a modification constitutes your

acceptance of the Agreement. If you do not accept any of these conditions or any future Agreement, do not use or access the Services (or cease to do so). You may also end the relationship you have established with us at any time if you do not agree with any of these modifications, by closing your account (see Article XI: "Termination of your paid subscription or deletion of your account").

C. Entire Agreement / Severability of clauses

This Agreement, together with any amendment or supplementary agreement that you may enter into with the Company in connection with the Services (including any supplementary condition referenced herein), will constitute the entire agreement between you and the Company concerning the Services. If any provision of this Agreement is deemed invalid by a court of competent jurisdiction, the invalidity of that provision will not affect the validity of the remaining provisions of this Agreement, which will remain in full force and effect.

D. No waiver

No waiver of any condition of this Agreement will be deemed a subsequent or continuing waiver of that condition, and the Company's failure to enforce any right or provision under this Agreement does not constitute a waiver of that right or provision.

F. Contact details

Please contact us at the address contact@angelprotect-app.com for any questions concerning this Agreement.

The offices of TALITI PROJECT LLC are located at the following address:

1209 MOUNTAIN ROAD PL NE STE N

Albuquerque NM 87110 USA

G. Language

You and the Company have expressly agreed and required that this Agreement and all documents relating thereto be drafted in English, and that the English version of this Agreement prevail in the event of any discrepancy between it and a version in another language.